Gates & Cooper LLP

Intellectual Property Law

Howard Hughes Center
6701 Center Drive West, Suite 1050
Los Angeles, California 90045
Tel (310) 641-8797
Fax (310) 641-8798

Direct (310) 642-4146
ggates@gates-cooper.com

February 16, 2001

VIA EMAIL

Dr. Edward Y. Chang
University of California, Santa Barbara
Electrical and Computer Engineering
Engineering-1 Rm # 3163
Santa Barbara, CA 93106

Re: Your Reference: 2000-316-2
Our Reference: G&C 30794.71-US-P1
U.S. Patent Application for:
PERCEPTION-BASED IMAGE RETRIEVAL

Inventor: Edward Y. Chang

Requested Action:	Review the enclosed materials for accuracy. If there are no errors, please execute the documents and return them by **March 1, 2001** for filing with the Patent Office.

Dear Dr. Chang:

Your Patent Application is Enclosed for Review and Execution

A final version of the above-identified patent application is enclosed for your review and execution. As you review the application for accuracy, it is particularly important that the application includes a clear explanation of the best mode of practicing the various aspects of the invention for which patent protection is desired. It is also extremely important that the application completely describes the invention and explains to an individual of ordinary skill in the art everything that will be required to make and use the invention.

In addition, the claims at the end of the specification must particularly point out and distinctly claim the subject matter of the invention. The claims should cover the invention in its broadest aspects and also more specifically. The broadest claims, i.e., claims **1, 8 and 9**, should recite only the essential features of the invention. Review these claims for any element which could be eliminated without losing the essence of the invention. The remaining claims contain additional elements which further limit the claimed scope of the invention. Therefore, check for and note, any limitation which is unnecessary to describe the inventive concept.

If the application is acceptable, the Declaration at the end of the application must be dated and signed so that your typed name, **Edward Y. Chang**, and signature are exactly the same. If changes in the application are needed, please call me before signing any of the documents.

Assignment

The Assignment needs to be dated and signed and then returned to us for filing. The Assignment transfers ownership of the patent application to **The Regents of the University of California**.

The Duty of Disclosure Requires that We Submit Prior Art to the Patent Office Within Three Months of Filing this Application

So that you might prepare for the next step in the patent application process, you should be aware that the law imposes a duty on the inventor, the patent attorney, any assignee company, and anyone else who is substantially involved in the preparation or prosecution of the patent application. The duty is one of candor and good faith to disclose to the PTO all information of which these people are aware which is material to the examination of the patent application. If the duty is not properly fulfilled, any patent issuing from the application may be found invalid.

We ask that you gather together and forward to us all documents, articles, videos, brochures, advertisements, etc., about devices, whether or not they were sold commercially, which were used or described in public by you or others, which have some reasonable similarity to your invention.

Related Foreign Patent Applications

As you may know, the filing of the above-entitled application will then begin a twelve-month option period during which it may be possible to file applications in most foreign countries. There are, however, exceptions, so please notify us as soon as possible with any plans or questions about foreign filing. (In particular note that in Canada an application must be filed within one year of any public disclosure).

Publication

Pursuant to recent changes in the patent laws, patent applications are published eighteen (18) months from the earliest filing date claimed. If an applicant desires, publication may be avoided (or at least delayed until issuance). However, please note that a request for non-publication must be submitted at the time of filing and must include a certification that the application will not be filed in another country that requires publication. The request may be rescinded at any time. Further, if a foreign application is filed in contradiction with the certification, the PTO must be notified within forty-five days after the foreign filing or the unpublished application shall be abandoned.

We recommend allowing the publication of any eligible application in order to obtain provisional rights and to establish the application as prior art. Accordingly, our default practice will be to allow publication, and NOT to submit a request for non-publication unless we are directed otherwise.

However, should you desire not to publish this application, please let us know at the earliest opportunity.

Summary

In summary, please sign the enclosed documents and return them by **March 1, 2001**. Once the signed documents are received, we will immediately file the application and related documents in the U.S. Patent and Trademark Office.

Please call me if you have any questions. Thank you for allowing us to be of service to you in this matter.

Very truly yours,

George H. Gates

GHG/amb
Enclosures:
Patent Application
Declaration and Power of Attorney
Assignment

cc: Ms. Linda S. Stevenson (letter only via 1st Class Mail)